

#	Case Name	Tentative
		position or department that was not under the Human Resources department's influence. Defendant refused these requested reasonable accommodations. Instead, Defendant made clear to Plaintiff that it was simply "going through the motions" by holding these meetings but that no actual reasonable accommodation would be offered." Read as a whole, Plaintiff's SAC alleges he suffers from an adjustment disorder with mixed anxiety and depressed mood, which Plaintiff alleges could be accommodated by being reassigned to a different supervisor. These allegations are legally insufficient to state a claim for failure to provide a reasonable accommodation. See <i>Higgins-Williams v. Sutter Medical Foundation</i> (2015) 237 Cal.App.4th 78, 85 ("[a]n employee's inability to work under a particular supervisor because of anxiety and stress related to the supervisors's standard oversight of the employee's job performance does not constitute a disability under FEHA.") The demurrer is SUSTAINED, with one final opportunity for Plaintiff to attempt to plead a cause of action for Failure to Provide Reasonable Accommodation. Plaintiff has already had three opportunities to plead such a cause of action. Plaintiff may have one final opportunity to attempt to address the deficiencies in this cause of action. The case management conference is continued to November 2, 2026 at 9:00 a.m. in Department C28. Defendant shall provide notice of this ruling.
52.	Bahra v. County of Orange 2026-01542077	Defendant County of Orange's unopposed demurrer to the complaint of plaintiffs Kevin Bahra and Daniel Johnson is SUSTAINED. Plaintiffs have failed to allege a dangerous or defective condition of defendant's property for purposes of Government Code section 835. "A claim alleging a dangerous condition may not rely on generalized allegations but must specify in what manner the condition constituted a dangerous condition. A dangerous condition exists when public property 'is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,' or it possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users." <i>Summerfield v. City of Inglewood</i> (2023) 96 Cal. App. 5th 983, 994 (citations omitted). The complaint fails to make these allegations.

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		Plaintiffs are granted ten days leave to amend. Defendant shall give notice of this ruling.
53.	Morrow v. General Motors LLC 2025-01465502	Defendant General Motors LLC's Demurrer to the First Amended Complaint is OVERRULED. GM demurs to the fourth and fifth causes of action. Fourth Cause of Action – Breach of the Implied Warranty of Merchantability "The statute of limitations for breaches of the implied warranty of merchantability is four years." (<i>Montoya v. Ford Motor Company</i> (2020) 46 Cal.App.5th 493, 495.) Courts have applied Commercial Code section 2725 to claims arising from an implied warranty. (<i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1305-1306.) The future performance exception articulated within Commercial Code section 2725, subdivision (2), "must be narrowly construed." (<i>Cardinal Health 301, Inc. v. Tyco Electronics Corp.</i> (2008) 169 Cal. App. 4th 116, 130.) The exception "applies only when the seller has expressly agreed to warrant its product for a specific and defined period of time." (<i>Ibid.</i>) Consequently, the California Court of Appeal has interpreted and applied the future performance exception almost exclusively in the express warranty context. (<i>Id.</i> at pp. 129-131 (citing cases)). To emphasize this point, the <i>Cardinal Health</i> court stated that, "[b]ecause an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held [that] it is not a warranty that explicitly extends to future performance of the goods." (<i>Id.</i> at pp. 133-134.) Notably, however, "[o]ne innovation of the Song-Beverly Act is an express provision for a duration of the implied warranty of merchantability." (<i>Mexia</i> 174 Cal.App.4th at 1304.) With respect to Song-Beverly Act claims, "[t]he duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable." (Civ. Code, § 1791.1, subd. (c).) Based on the above, the reasoning articulated in <i>Cardinal Health</i> does not appear applicable: In the context of a Song-Beverly claim, an implied warranty has a "specific and defined period of time." The Fourth Cause of Action accrued "when